

25VECV02393 25VECV02393

County: los-angeles

Division: Civil Law and Motion

Department: I

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Case Number: 25VECV02393 Hearing Date: August 5, 2026 Dept: I

25VECV02393 BLANCA JUDITH HERRERA vs CITY
OF LOS ANGELES, et al.

August 5, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Tentative Ruling – Motions to Compel Further
Responses

I.

Background

On April 29,
2025, Plaintiff Blanca Judith Herrera ("Plaintiff") filed a complaint against
Defendants City of Los Angeles ("City"), State of California ("State"),
Judicial Council of California ("JCC"), and Does 1 to 50 alleging one cause of
action for premises liability.

On July 13,
2026, Plaintiff filed the instant motion to compel the City's further responses
to her Form Interrogatories, Set One, Special Interrogatories, Set One,
Requests for Production of Documents, Set One, and Requests for Admissions, Set
One. Plaintiff also requests sanctions.

On July 23,
2026, the City filed its opposition.

To date,
Plaintiff has not filed a reply.

II. Motion to Compel Further Responses

Interrogatories

Cal. Code of Civ. Proc. § 2030.300 provides, in pertinent part, that “[o]n receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply: (1) An answer to a particular interrogatory is evasive or incomplete. (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate. (3) An objection to an interrogatory is without merit or too general.” (CCP § 2030.300(a).)

Unless notice of a motion to compel further responses is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response. (CCP § 2030.300(c).)

Request for Production of Documents

“On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: (1) A statement of compliance with the demand is incomplete. (2) A representation of inability to comply is inadequate, incomplete, or evasive. (3) An objection in the response is without merit or too general.” (Cal. Code of Civ. Proc. § 2031.310(a).)

Requests for Admissions

If a party to whom requests for admissions are directed fails to serve a timely response, the party seeking

discovery may move the court for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted. (CCP § 2033.280(b).) The party to whom the requests for admission are directed waives any objection to the requests upon their failure to timely respond. (CCP § 2033.280(a).)

Sanctions

The court shall impose a monetary sanction under Chapter 7 (commencing with CCP § 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the party acted with substantial justification. (CCP § 2031.310(h).) Under California law, the objecting party has the burden of justifying its objections when the propounding party requests that the Court order further responses. (*Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-221.) Further, under CCP § 2023.010, it is a misuse of discovery to make unmerited objections. (CCP § 2023.010(e).)

III. Discussion

Meet and Confer Requirement

A motion to compel further responses shall be accompanied by a meet and confer declaration. (CCP §§ 2030.300(b)(2) and 2030.310(b)(2).) On June 25, 2026, Plaintiff's counsel "submitted formal attempts to meet and confer regarding Defendant's insufficient discovery responses." (Young Decl. ¶ 8.) Defense counsel did not respond. (*Id.* at ¶ 9.) Plaintiff's counsel attempted to contact defense counsel via email and telephone, but counsel still did not respond. (*Ibid.*) Accordingly, the Court finds that Plaintiff satisfies the meet and confer requirement.

Timeliness

As a preliminary matter, the Court addresses the timeliness of the instant motions. The City argues that these motions are barred by CCP §§ 2030.300(c), 2031.310(c), and 2033.290(c). (See Oppositions at p. 5.) These code sections provide that motions to compel further responses shall be noticed within 45 days of service of the verified response, or any specific later date to which the demanding party and the responding party have

agreed in writing; otherwise, the demanding party waives any right to compel a further response. (See CCP §§ 2030.300(c), 2031.310(c), and 2033.290(c).)

Here, the City served its initial discovery responses on May 13, 2026. (Young Decl. at ¶ 5.) Accordingly, any motion to compel further responses must have been noticed by June 27, 2026. (See CCP §§ 2030.300(c), 2031.310(c), and 2033.290(c).) Plaintiff noticed the instant motions on July 13, 2026.

Notably, Plaintiff's counsel declares that, on June 17, 2026, after learning of defense counsel's unavailability to meet and confer, counsel asked for a three-week extension to July 20, 2026. (Young Decl. at ¶ 7.) Defense counsel's paralegal could not provide an extension in the absence of counsel. (Id. at ¶ 7.)

Notwithstanding the foregoing, while Plaintiff attempted to meet and confer in good faith, the deadlines imposed by CCP §§ 2030.300(c), 2031.310(c), and 2033.290(c) are mandatory. Once the statutory period expires without a timely motion or written agreement extending the deadline, the court lacks authority to compel further responses. (See *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.) Plaintiff could have timely filed the motions with a showing of a good faith effort to meet and confer but did not do so. Therefore, Plaintiff's motions are denied.

Furthermore, even assuming, *arguendo*, Plaintiff's motions were timely, Plaintiff fails to submit separate statements as required by Cal. Rules of Court Rule 3.1345(a). (See CRC Rule 3.1345(a).) Without separate statements, the Court is unable to ascertain the sufficiency of the City's responses. Plaintiff's motions are also denied on these grounds.

Sanctions

Pursuant to CCP § 2031.310(h), the City requests sanctions against Plaintiff and her counsel, jointly and severally, in the total amount of \$3,000.00, or \$750.00 per opposition, representing three hours of attorney work at an hourly rate of \$250.00 per motion. (See Sawaf Decl. at ¶ 16.) Considering Plaintiff filed time-barred motions which fail to comply with the California Rules of Court, the Court finds sanctions appropriate pursuant to CCP § 2031.310(h). Additionally, the Court finds the

requested amount reasonable.

IV.

Conclusion

Plaintiff's motions to compel further responses are
DENIED.

Additionally, pursuant to CCP § 2031.310(h), sanctions
are awarded against Plaintiff and her counsel, jointly and severally, in the
total amount of \$3,000.00, payable to defense counsel within 20 days of this
hearing.

Moving party to give notice.